

ASCII MASTER FLOW – PANEL 1/25: The printed clause, the coercive claim and the ownership fence

| three terms are printed, and only three
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WHY THE CLAUSE EXISTS -> a club you JOIN, a church you may LEAVE, but the STATE claims to
BIND persons who NEVER AGREED to be bound, and to COERCE them

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THAT CLAIM MUST BE JUSTIFIED -- AND THE JUSTIFICATION HAS THREE DIRECTIONS
+-----+-----+-----+
RIGHTS	DUTIES	ACCOUNTABILITY
what may I CLAIM	what do I OWE	why must POWER ANSWER
AGAINST the state?	THROUGH social life?	for itself?
+-----+-----+-----+

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EACH DEGENERATES ALONE -- THIS IS THE WORKING THESIS OF THE WHOLE CLAUSE
rights protect INDIVIDUALITY | duties sustain SOCIAL ORDER | accountability
LEGITIMISES COERCION
rights without limits -> LICENCE | duties without rights -> SUBORDINATION |
power without answerability -> DOMINATION

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THE PRIOR QUESTION THE THREE TERMS PRESUPPOSE
WHY OBEY AT ALL? = POLITICAL OBLIGATION (Panel 16)
and when it fails -> THE DISOBEDIENCE LADDER (Panel 17)

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OWNERSHIP FENCE Austin, Bodin, Laski, Kautilya and legal finality -> Sovereignty |
anarchism, Marxism, socialism AS IDEOLOGIES -> Political Ideologies | monarchy,
theocracy, democracy AS FORMS -> Forms of Government | equality, justice, liberty
THEMSELVES -> Social and Political Ideals | recognition, group rights, gendered private
power -> Multiculturalism and Gender | theories of punishment -> Crime and Punishment |
article-by-article doctrine -> Polity
BRIDGES ADMITTED Locke, Bentham, Hohfeld, Gandhi, Hobbes, Rousseau, Plato, Aristotle,
Hegel, Green, Dworkin, Raz, Simmons -- each because an owned PYQ needs it
CORPUS SHARE -> 9 of 112 parts (2018:1 2019:1 2020:1 2021:1 2022:1 2023:1 2024:2 2025:1)

ASCII MASTER FLOW – PANEL 2/25: Two rival pictures and the six relation-models

THE AXIS IS EXPLANATORY PRIORITY -- NOT BIOLOGY AND NOT ENGINEERING

AXIS	MECHANISTIC / ARTIFICIAL	ORGANIC / ETHICAL
PRIORITY	individual purposes are PRIOR to the state	the political WHOLE is prior to the fully developed citizen
ORIGIN	artificial agreement, convention, instrument	natural growth, historical development, ethical life
STATE'S ROLE	protect prior rights; coordinate separate agents	constitute conditions of the good life and moral freedom
PARADIGM NAMES	Hobbes, Locke, contractarian liberalism -- SHARPLY DIFFERENT contracts	Aristotle (natural polis); Hegel (ethical state)
RIGHTS	strong rights AGAINST state power are intelligible	rights MATURE WITHIN an ethical and legal order
RISK	atomism, private power, hollow FORMAL freedom	statism, fixed hierarchy, silencing of conscience

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THE SIX RELATION-MODELS -- LOCATE THE CASE BEFORE GRADING IT

MODEL	IMAGE	FREEDOM IS	MAIN DANGER
MECHANISTIC	instrument of prior persons	a protected sphere	atomism
ORGANIC	whole constitutes the good	participation in rational institutions	statism
WELFARE / POSITIVE	instrumental, but REMOVES social hindrances to agency	effective CAPACITY	paternalism, dependence
MARXIST	class state universalises a PARTIAL interest	emancipation from material domination	under-protected civil liberty
ANARCHIST	coercion has NO demonstrated general right to rule	autonomous voluntary cooperation	coordination and security deficits
COMMUNITARIAN	the self is socially EMBEDDED	situated autonomy	conformity; silenced internal minorities

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QUALIFIED SYNTHESIS -> constitutional democracy is MECHANISTIC in insisting institutions SERVE PERSONS, and ORGANIC in recognising that agency and citizenship are SOCIALLY FORMED. Neither metaphor is a complete theory -- and that is a POSITION, not a fence-sit.

ASCII MASTER FLOW – PANEL 3/25: What a right is, and the six grounds that justify it

THE LADDER FROM WANT TO RIGHT

DESIRE ("I want it") -> NEED ("I cannot flourish without it") -> INTEREST WORTH
PROTECTING -> JUSTIFIED CLAIM = A RIGHT ("I am OWED this, and someone is BOUND")

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DEFINITION -> a JUSTIFIED claim, liberty, power or immunity recognised within a MORAL or
LEGAL order; a PROTECTED NORMATIVE POSITION

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FOUR DEMANDS OF EVERY RIGHT-CLAIM

1. HOLDER -- whose right is it?
2. CONTENT -- to do / to receive / to be free from
3. BEARER -- who is constrained, and how?
4. GROUND -- why is this claim JUSTIFIED?

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THE SIX COMPETING GROUNDS -- THE WHOLE OF PANELS 4 TO 8

GROUND	CLAIM	ANCHOR
-----	-----	-----
NATURE	rights PRECEDE the state and constrain it	Locke
LAW	a right exists where law supplies CLAIMANT + DUTY-BEARER + REMEDY	Bentham
MORALITY	rights justified by ethical reasoning BEFORE law	anti-slavery claims
WILL	rights are normative CONTROL over another's duty	will theory
INTEREST	rights protect IMPORTANT INTERESTS	interest theory
DIGNITY	rights belong to all humans AS HUMAN	human-rights doctrine

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THREE DISTINCTIONS FOR THE FIRST PARAGRAPH

NEED is not yet a RIGHT | LIBERTY (non-interference) is not a CLAIM-RIGHT (requires
correlative conduct) | MORAL right can exist WITHOUT enforcement; LEGAL right exists
WITHIN an institutional order

OBJECTION -> rights-talk is vague and inflated. REPLY -> Hohfeld supplies the discipline.

RESIDUAL -> the reply is ANALYTIC; it fixes FORM, not CONTENT.

ASCII MASTER FLOW – PANEL 4/25: Natural, legal and moral rights -- Locke against Bentham

LOCKE -- THE NATURAL-RIGHTS GROUND

ELEMENT	POSITION	EXAM USE
-----	-----	-----
SOURCE	rights belong to persons IN THE STATE OF NATURE	pre-political grounding
CONTENT	life, liberty, property	standard opening triad
FUNCTION OF STATE	FIDUCIARY protection of rights	limited government
RESISTANCE	if government VIOLATES THE TRUST, resistance is justified	rights as a check on sovereignty

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LOCKE IS NOT HOBBS -- DO NOT MERGE THEM

HOBBS: self-preservation, extensive natural liberty UNDER FEAR; IRREVERSIBLE transfer; sovereign command secures PEACE

LOCKE : a NORM-GOVERNED state of nature; a TRUST, revocable; limited government secures RIGHTS; RESISTANCE on forfeiture

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BENTHAM -- THE LEGAL / POSITIVIST GROUND

natural rights are "NONSENSE UPON STILTS"

A RIGHT EXISTS WHERE AN ENFORCEABLE LEGAL SYSTEM SUPPLIES:

CLAIMANT + DUTY-BEARER + REMEDY

X HE DOES NOT REJECT ALL RIGHTS -- he rejects rights WITHOUT LAW

POSITIVISM asks WHAT RIGHTS EXIST IN LAW; moral-rights theory asks WHAT RIGHTS OUGHT TO EXIST EVEN BEFORE LAW RECOGNISES THEM

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MORAL RIGHTS -- THE CRITICAL RESIDUE

justified claims grounded in ETHICAL REASONING rather than enactment

they make ANTI-SLAVERY, ANTI-COLONIAL and ANTI-DISCRIMINATION claims INTELLIGIBLE

BEFORE legal recognition; they may LATER become legal rights but are NOT REDUCIBLE to them

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THE TWO OBJECTIONS THAT FACE EACH OTHER

AGAINST LOCKE -> natural rights cannot be empirically shown and may encode historically specific PROPERTY interests. REPLY -> the claim is NORMATIVE; demanding empirical proof is a CATEGORY ERROR. RESIDUAL -> the historical point survives; reconstruct the STRUCTURE, not the CONTENT.

AGAINST BENTHAM -> if LAW ALONE creates rights, an oppressive legal system could DEFINE INJUSTICE AS JUSTICE. REPLY -> LEGAL VALIDITY AND MORAL LEGITIMACY ARE NOT IDENTICAL -- which is exactly the space moral rights occupy.

ASCII MASTER FLOW – PANEL 5/25: Hohfeld's four incidents -- the precision instrument

"A RIGHT" IS NOT ONE THING -- IT IS FOUR JURIDICAL RELATIONS

INCIDENT	CORRELATIVE	OPPOSITE	WHAT IT MEANS
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CLAIM-RIGHT	DUTY	NO-RIGHT	someone else is BOUND to act or forbear
LIBERTY /	NO-RIGHT	DUTY	I am FREE to act; nobody is bound to help
PRIVILEGE			
POWER	LIABILITY	DISABILITY	I can ALTER legal relations
IMMUNITY	DISABILITY	LIABILITY	others CANNOT alter my legal position

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READ EACH ROW AS A PAIR -- THAT IS THE WHOLE APPARATUS

I have a CLAIM-RIGHT -> you have a DUTY

I have a LIBERTY ----> you have NO-RIGHT that I desist (but NO duty to assist)

I have a POWER -----> you are LIABLE to the change

I have an IMMUNITY --> you are DISABLED from changing it

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ORDINARY RIGHTS BUNDLE SEVERAL INCIDENTS -- FREEDOM OF SPEECH, UNPACKED

LIBERTY I may speak; nobody is bound to make me speak

CLAIM-RIGHT . against censorship IN SPECIFIED CONTEXTS

IMMUNITY against arbitrary alteration of that protection

X NO general claim-right that others PROVIDE a platform, audience or press

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WHY THIS DECIDES THE 2025 QUESTION

CORRELATIVITY is STRICT for CLAIM-RIGHTS and ABSENT for LIBERTIES

-> the connection is CONCEPTUAL for one class and INSTITUTIONAL for the rest

-> the stem's PREMISE is sound; its INFERENCE fails

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WHAT HOHFELD DOES AND DOES NOT DO

DOES prevents CATEGORY MISTAKES; shows that many disputes are merely VERBAL

DOES NOT.. justify ANY right -- an ANALYTIC scheme, not a MORAL theory

OBJECTION -> too technical for normative theory. REPLY -> false debates arise from ambiguous use of "right". RESIDUAL -> analysis is PREPARATORY; content stays open.

ASCII MASTER FLOW – PANEL 6/25: Will theory against interest theory

THEORY	CORE IDEA	STRENGTH	MAIN DIFFICULTY
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WILL (CHOICE)	rights protect CHOICE, CONTROL and AGENCY; the holder is a "small sovereign" who may WAIVE, DEMAND or ENFORCE	fits AUTONOMY and CONSENT exactly	CHILDREN and the SEVERELY DISABLED become hard cases
INTEREST (BENEFIT)	rights protect IMPORTANT INTERESTS necessary for well-being	explains WELFARE and PROTECTIVE rights well	can UNDERPLAY the role of ACTIVE AGENCY

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THE QUESTION EACH ASKS

WILL -> WHO CONTROLS the duty?

INTEREST -> WHOSE IMPORTANT INTEREST JUSTIFIES imposing the duty?

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THE MIRRORED HARD CASES -- EACH BREAKS ON THE OTHER'S HOME GROUND

INFANT / SEVERELY DISABLED -> strict WILL theory implies NO RIGHTS (intolerable);
INTEREST theory handles easily

COMPETENT ADULT WHO WAIVES -> WILL theory handles easily (waiver IS exercise);
strict INTEREST theory struggles to explain discarding a protection that exists for the holder's benefit

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THE MIXED POSITION -- A CONCLUSION, NOT A DODGE

rights BOTH secure AGENCY and protect VITAL INTERESTS; different rights sit at different points on that spectrum, and a legal order need not pick one theory for all of them

OBJECTION -> the theories cannot be reconciled. REPLY -> mature systems ALREADY use both dimensions. RESIDUAL -> when agency and interest CONFLICT (paternalist protection against competent refusal), the mixed view still owes a TIE-BREAKING CRITERION, and has none.

ASCII MASTER FLOW – PANEL 7/25: Human rights -- universality against cultural relativism

THE 2012 STEM SUPPLIES ITS OWN THESES

"...no longer the product of a particular culture, rather a COMMON HUMAN ASPIRATION"

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UNIVERSALIST LINE

certain rights belong to ALL
human beings simply AS HUMAN
GROUND: dignity, equal worth,
protection from CRUELTY,
ARBITRARINESS, DEGRADATION
PRESUPPOSES a MINIMUM MORAL
HORIZON common to humanity

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RELATIVIST CHALLENGE

conceptions of PERSONHOOD, COMMUNITY, AUTHORITY and
OBLIGATION differ across traditions
the VOCABULARY of claim-rights is historically
WESTERN in FORMULATION
cultures may prioritise ROLE and DUTY over CLAIM

THE THREE-COLUMN GRID THAT ANSWERS THE STEM

POINT

UNIVERSALIST

RELATIVIST

BALANCED LINE

GROUND OF DIGNITY

every human has
equal worth

dignity is
interpreted THROUGH
culture

CORE protections may be
universal; INSTITUTIONAL
EXPRESSION can vary
universality of
ASPIRATION need not imply
uniformity of ARTICULATION

RIGHTS LANGUAGE

a common moral
vocabulary

often WESTERN in
formulation

rights can be read
RELATIONALLY without
losing dignity

COMMUNITY vs INDIVIDUAL

rights protect the
person against
oppression

cultures may
prioritise role and
duty

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WHAT MUST NOT BE CONCEDED

that the critique of CRUELTY, ARBITRARY POWER and DEGRADATION is itself merely LOCAL.
If that goes, "human rights" names NOTHING.

OBJECTION -> universalism erases civilisational diversity. REPLY -> universality need NOT
mean cultural HOMOGENISATION. RESIDUAL -> the BOUNDARY of the minimum core, and WHO
fixes it, remain genuinely disputed.

ASCII MASTER FLOW – PANEL 8/25: Indian tradition, Gandhi, and the 2020 test

THE STEM CONTAINS TWO INSTRUCTIONS

- (i) decide ANTAGONISM -- a strong word that must be TESTED
- (ii) do it THROUGH the HUMAN-RIGHTS DOCTRINE, not by general cultural comparison

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THREE POSSIBLE ANSWERS -- ONLY ONE SURVIVES

"YES, ANTAGONISTIC" -> would require the tradition to DEFEND CRUELTY or DENY MORAL WORTH. It does not. FAILS.

"NO, IDENTICAL" ----> would require CLAIM-RIGHTS ASSERTED AGAINST THE STATE. Not there. FAILS.

"DIFFERENT IDIOM, NOT ANTAGONISM" + a NAMED RISK -> SURVIVES.

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THE IDIOM, STATED PRECISELY

DHARMA -> role-based obligation, reciprocity, self-restraint, truth and order

THE PERSON -> EMBEDDED in a web of relations, not an abstract individual outside all ties

EMPHASIS -> RIGHT CONDUCT, SELF-MASTERY, RECIPROCAL OBLIGATION

AT ITS STRONGEST -> RESPONSIBILITY, RESTRAINT, MORAL VOCATION -- NOT mere obedience

REQUIRED FILTER -> must NOT sacralise HIERARCHY

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GANDHI'S BRIDGE

"rights grow out of WELL-PERFORMED DUTIES"

-> a thesis about the MORAL SOURCE and SOCIAL SUSTAINABILITY of rights, NOT their denial

-> DUTY-FIRST is NOT necessarily HIERARCHY-FIRST

-> SWARAJ = SELF-RULE in the ETHICAL sense, not merely external non-interference

-> Gandhi is NEITHER a hard legal positivist NOR an atomistic liberal; NEITHER simply anti-state NOR a centralising statist -- MORALISED CITIZENSHIP and DECENTRALISED RESPONSIBILITY

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THE HONEST CONCESSION

a duty-centred idiom can leave LITTLE ROOM FOR PROTEST and can SUBMERGE the person

AMBEDKAR -> in a society STILL STRATIFIED BY CASTE, duty-first framings can be CAPTURED by dominant groups

VERDICT -> ANTECEDENT to the rights idiom, not ANTAGONISTIC; combine duty-language with CONSTITUTIONAL RIGHTS and MORAL EQUALITY -- a filtered synthesis, not nostalgia

ASCII MASTER FLOW – PANEL 9/25: Unconditional rights and the collision argument (2022)

TWO WORDS DO ALL THE WORK -- ATTACK BOTH

"UNCONDITIONAL" = admitting NO LIMIT WHATEVER, not merely "strong"

"NECESSARILY" = a MODAL claim about CONCEPTUAL necessity, not a social forecast

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THE COLLISION

MY UNLIMITED LIBERTY <-----> YOUR EQUAL UNLIMITED LIBERTY

both claims cannot be satisfied, and NO PROCEDURE can decide between them --

because ANY resolving procedure would ITSELF BE A CONDITION

HOHFELDIAN REFINEMENT -> two unconditional LIBERTIES conflict IN FACT; two unconditional

CLAIM-RIGHTS conflict IN NORMATIVE STRUCTURE, since each entails a duty in the other

party that the other's right forbids

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THE FOUR BOUNDARY PRINCIPLES THAT RESTORE COEXISTENCE

1. OTHERS' EQUAL RIGHTS 2. HARM CONSTRAINTS

3. PUBLIC ORDER 4. INSTITUTIONAL ADJUDICATION

-> not DENIAL of rights but the CONDITION OF THEIR COEXISTENCE, since liberty is PLURAL
and SOCIALLY SITUATED

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THE DECISIVE DISTINCTION

LIMITING a right IS NOT NULLIFYING it

LIMITATION principled, reasoned, bounded, REVIEWABLE

NULLIFICATION .. arbitrary, unreasoned, open-ended, UNREVIEWABLE

THE PROBLEM IS *ARBITRARY RESTRICTION*, NOT PRINCIPLED COORDINATION

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OBJECTION -> once limits are admitted, the state may STEADILY ERODE rights

REPLY -> close on ACCOUNTABILITY: every restriction JUSTIFIED, PROPORTIONATE and

JUDICIALLY REVIEWABLE -- the limits must themselves be LIMITED

RESIDUAL -> where review is CAPTURED, DELAYED or UNAVAILABLE to the affected group, the

erosion objection returns in full; that vulnerability is EMPIRICAL and undischarged

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VERDICT -> unconditional rights are SELF-DEFEATING rather than NECESSARILY

ANARCHY-PRODUCING: they destroy the COEXISTENCE that makes rights exercisable, so the
failure is INTERNAL TO THE CONCEPT

ASCII MASTER FLOW – PANEL 10/25: Duties -- nature, kinds, and what law cannot codify

DEFINITION -> an OBLIGATION to DO, AVOID, RESPECT or SUPPORT something owed to OTHERS,

INSTITUTIONS, COMMUNITY or ONESELF

WHAT DUTIES DO -> turn ABSTRACT NORMS into EXPECTATIONS OF CONDUCT, so that freedom can be exercised in a SHARED world

PRESUPPOSITION -> human beings are RELATIONAL; social life cannot be sustained by CLAIMS ALONE

KINDS -> LEGAL - MORAL - CIVIC - POLITICAL - PROFESSIONAL - SPIRITUAL

X do NOT reduce duty to LEGAL duty

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TYPE	BASIS	ENFORCEMENT	EXAMPLE-TYPE
LEGAL DUTY	law, constitution, statute, recognised procedure	courts, penalties, official sanction	obeying valid law; paying due taxes
MORAL DUTY	conscience, ethical reason, social norm	praise and blame, self-judgment, public opinion	truthfulness; compassion; civic decency

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THE CONTROLLING ARGUMENT

a legal order CANNOT FUNCTION WITHOUT COMPLIANCE -- but NO LEGAL ORDER CAN CODIFY THE WHOLE OF ETHICAL LIFE. Democratic citizenship depends on habits LAW CANNOT MANUFACTURE: TOLERANCE - HONESTY - RESTRAINT - RESPECT FOR DISAGREEMENT - CONCERN FOR PUBLIC GOOD

TRAFFIC BETWEEN THE COLUMNS -> some duties BEGIN moral and BECOME legal; others SHOULD REMAIN moral, because coercion would be SELF-DEFEATING

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THE STANDING DANGER, NAMED HONESTLY

duty is often invoked BY AUTHORITY TO SILENCE DISSENT

REPLY -> tie duty to JUSTICE, RECIPROCITY and ACCOUNTABILITY; the test is DIRECTIONAL -- does the duty-talk BIND THE POWERFUL TOO?

RESIDUAL -> even reciprocal duty can be captured, because the TERMS of reciprocity are set by whoever controls the institutions

ASCII MASTER FLOW – PANEL 11/25: Gandhi's inversion and the Fundamental Duties

THE LIBERAL ORDER

I HAVE rights

-> others owe me

-> the state SECURES what

I already have

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WHAT GANDHI IS *NOT* SAYING -- ALL FOUR MUST BE STATED

X rights are dispensable

X he is a hard legal positivist

X he is an atomistic liberal

X he is a centralising statist

YES -> DUTY EDUCATES THE MORAL SELF, so that freedom becomes NON-DESTRUCTIVE

KEY TERM -> SWARAJ = ethical SELF-RULE, not merely external non-interference

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THE CONSTITUTIONAL REGISTER -- ARTICLE 51A

INSERTED BY -> the Constitution (FORTY-SECOND AMENDMENT) Act, 1976

PHILOSOPHICAL READING -> an attempt to BALANCE rights-bearing citizenship with

RESPONSIBILITY-bearing citizenship; a republic cannot survive if citizens invoke rights while neglecting the CIVIC ETHOS that preserves institutions, social harmony, public property, scientific temper and constitutional culture

LEGAL FACT -> Fundamental Duties are NON-JUSTICIABLE -- not directly enforceable

PHILOSOPHICAL CONTROL -> NON-JUSTICIABILITY IS A LEGAL FACT; it NEITHER PROVES NOR

DISPROVES any MORAL thesis about duty

X Fundamental Duties are NOT a warrant to DIMINISH rights

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OBJECTION -> duty-language is STATE-SPONSORED MORALISM

REPLY -> it becomes problematic EXACTLY when deployed to EVADE STATE ACCOUNTABILITY or to

SUPPRESS LEGITIMATE DISSENT; citizenship is PARTICIPATORY, not CONSUMPTIVE

RESIDUAL -> AMBEDKAR: a duty-first order in a stratified society can be CAPTURED by

dominant groups, so the method that liberates one group may ENTRENCH another

ASCII MASTER FLOW – PANEL 12/25: Correlativity (2025) and priority (2023) -- two shapes

2025 IS A MODALITY QUESTION

2023 IS A PRIORITY QUESTION

"no NECESSARY connection"

-> attack "NECESSARILY"

-> is the connection CONCEPTUAL
or INSTITUTIONAL?

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ANSWER VIA HOHFELD

CLAIM-RIGHT -> STRICTLY correlative
to a DUTY

LIBERTY ----> NO correlative duty
to assist

POWER -----> LIABILITY

IMMUNITY ---> DISABILITY

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THE PREMISE IS TRUE, THE INFERENCE
IS INVALID -- SAY BOTH

TRUE duties ARE obligations
and rights ARE
entitlements: ANALYTICALLY
DISTINGUISHABLE

INVALID .. distinguishable does NOT
entail UNCONNECTED --
they are NOT SOCIALLY
SEPARABLE

CONSEQUENCE -> entitlements without correlative obligations are EMPTY; obligations
without any corresponding claims risk AUTHORITARIANISM

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WHY ACCOUNTABILITY IS IN THE 2023 STEM AT ALL

it is the term that PREVENTS the duty-first answer from collapsing into SUBORDINATION:
if power must ANSWER, asking citizens for duty is NOT a demand for submission

VERDICT -> DUTY has ETHICAL priority in MOTIVATION; RIGHTS retain POLITICAL priority in
PROTECTION; accountability is the CONDITION under which the first is safe.

Agree in PART: duty and accountability deserve EMPHASIS, not PRECEDENCE.

"duty and accountability PRIORITY over rights?"

-> NAME A CRITERION BEFORE RANKING

-> ETHICAL priority = what MOTIVATES conduct

-> POLITICAL priority = what PROTECTS persons

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ANSWER VIA THE PRIORITY GRID

POSITION	CORE CLAIM	MERIT	RISK
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RIGHTS-FIRST	protects person against coercion	shields minorities + dissent	atomised entitlement culture
DUTY-FIRST	preserves order and reciprocity	stresses social responsi- bility	paternalism or conformity
BALANCED	mutually sustaining	best fit for constitu- tional democracy	requires institu- tional vigilance

ASCII MASTER FLOW – PANEL 13/25: Accountability -- the argument and the three dimensions

THE ARGUMENT IN FOUR STEPS

1. the state CLAIMS COERCIVE AUTHORITY over persons
2. those persons did NOT individually consent to it
3. therefore its acts must be ANSWERABLE to them
4. otherwise the claim is INDISTINGUISHABLE FROM DOMINATION

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DEFINITION -> those who exercise PUBLIC POWER must EXPLAIN, JUSTIFY and BEAR CONSEQUENCES

IT IS THE PHILOSOPHICAL BRIDGE BETWEEN AUTHORITY AND LEGITIMACY

power WITHOUT answerability = MERE DOMINATION

power WITH answerability = defensible as PUBLIC TRUST

PRESUPPOSITION -> the state is NOT AN END IN ITSELF; it is morally constrained by the persons over whom it rules

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DIMENSION	EXACT DEMAND	FAILURE IF ISOLATED
ANSWERABILITY	give information and PUBLICLY JUSTIFY the decision	explanation without correction becomes RITUAL
ENFORCEABILITY / CONSEQUENCES	face REVIEW, REMEDY, SANCTION or REMOVAL where standards were breached	punishment without reason-giving becomes ARBITRARY
RESPONSIVENESS / CORRECTION	CHANGE conduct, REPAIR harm, LEARN institutionally	reactive correction may lack stable PROSPECTIVE rules

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THE CONTROLLING POINT

accountability is WIDER than ELECTIONS and WIDER than PUNISHMENT:

THE OFFICIAL MUST ANSWER | AN AUTHORISED FORUM MUST JUDGE | AN EFFECTIVE REMEDY OR CORRECTION MUST REMAIN POSSIBLE

TWO NEGATIONS -> it is NOT EFFICIENCY (a state may be efficient YET unaccountable), and it does NOT contradict FINALITY

OBJECTION -> sovereignty requires FINALITY, not constant answer-giving. REPLY -> finality attaches to CLOSING a dispute; accountability attaches to HOW the closing power is exercised. RESIDUAL -> every system needs a TERMINAL FORUM, and that forum's own accountability is the hardest unsolved problem in the topic.

ASCII MASTER FLOW – PANEL 14/25: The three arenas, Dworkin, and the 2019 verdict

ARENA	TO WHOM	THROUGH WHAT	BASIS
POLITICAL	the people	representation, elections, DEBATE, PUBLIC SCRUTINY, OPPOSITION, publicity	authority derives from the governed; power is held IN TRUST
LEGAL	law, courts, review	grievance, restraint of arbitrariness, REDRESS	RULE OF LAW is superior to mere rule BY power
MORAL	conscience, civil society, history	criticism, public shame, historical judgment	LEGALITY DOES NOT EXHAUST LEGITIMACY
CONTROLS -> political accountability is NOT reducible to PERIODIC VOTING; a LEGALLY WRONGFUL ACT DOES NOT BECOME RIGHT BECAUSE IT IS ELECTORALLY SUPPORTED			
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DWORKIN, TAKING RIGHTS SERIOUSLY (1977) -- WHY ADJUDICATION IS ACCOUNTABILITY			
	RULES	PRINCIPLES	
APPLICATION	ALL-OR-NOTHING: applies and settles, or does not	WEIGHT: can be OUTWEIGHED and still SURVIVE as law	
CONFLICT	one rule must be INVALID or subject to an EXCEPTION	principles genuinely COMPETE and are BALANCED	
AUTHORITY	PEDIGREE -- enacted, precedent, recognised	moral-political argument about what best JUSTIFIES the practice	
JUDICIAL ROLE	APPLY	INTERPRET and WEIGH	
ILLUSTRATION -> NO ONE MAY PROFIT FROM HIS OWN WRONG: the murderer is denied the inheritance a VALID WILL conferred; the PRINCIPLE overrode the RULE WITHOUT the rule being invalid			
UPSHOT -> RIGHTS ARE TRUMPS against collective goals, so a court holding the state to a principle is HOLDING POWER TO ACCOUNT, not merely settling a dispute			
OBJECTION (HARTIAN) -> judges exercise BOUNDED DISCRETION in the penumbra. REPLY -> the positivist cannot explain why litigants argue about entitlements they claim ALREADY to possess. RESIDUAL -> the RIGHT-ANSWER THESIS is hard to sustain under permanent reasonable disagreement.			
BOUNDARY -> Austin -> Kelsen -> Hart belongs to SOVEREIGNTY. Name and route.			
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THE 2019 QUESTION -- DO RIGHTS MAKE CITIZENS ACCOUNTABLE *TO* THE STATE?			
AUTHORITARIAN READING -> rights come WITH OBEDIENCE; the grantor is also the judge			
DEMOCRATIC READING ---> rights EMBED persons in a CONSTITUTIONAL STRUCTURE of MUTUAL ANSWERABILITY			
VERDICT -> RECIPROCAL, NOT ONE-DIRECTIONAL. Citizens are accountable FOR law-abiding, civic participation and respect for OTHERS' rights; the state is accountable FOR protecting freedom, equality and dignity. Citizenship is RELATIONAL, not FEUDAL -- and reciprocity is NOT symmetry.			

ASCII MASTER FLOW – PANEL 15/25: The liberal model and its four internal controls

CORE CLAIM -> the INDIVIDUAL IS MORALLY PRIOR to the state; the state is INSTRUMENTALLY

justified because it secures rights, liberty and the conditions of peaceful coexistence

LEGITIMACY DEPENDS ON -> CONSENT | LIMITATION | RESPECT FOR AGENCY

PRESUPPOSITION -> persons are ENDS IN THEMSELVES, not to be absorbed into collective purposes

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CONTROL 1 -- TWO FREEDOMS

NEGATIVE -> a protected sphere in which COMPETENT ADULTS are NOT COERCED

POSITIVE -> EFFECTIVE CAPACITY to understand and pursue a life-plan; justifies

EDUCATION, HEALTH or a SOCIAL MINIMUM WITHOUT licensing total direction

CONTROL 2 -- MILL'S HARM PRINCIPLE

coercion of a COMPETENT ADULT is presumptively justified to prevent HARM TO OTHERS --

NOT because officials judge the person's own choice UNWISE

CONTROL 3 -- PATERNALISM, SPLIT

DEFINITION -> interference with liberty or autonomy FOR THAT PERSON'S OWN GOOD

SOFT -> checks whether the choice is INFORMED and VOLUNTARY

HARD -> OVERRIDES even a COMPETENT and VOLUNTARY choice

CONTROL 4 -- NEUTRALITY AGAINST PERFECTIONISM

QUESTION	NEUTRAL / LIBERAL	PERFECTIONIST / COMMUNITARIAN	CONTROL
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May the state promote a good life?	secure FAIR TERMS and basic rights WITHOUT one comprehensive ideal	public institutions may cultivate genuine goods	promotion must stay RIGHTS-BOUND and CONTESTABLE
Is there a protected private sphere?	YES: conscience, association, family, personal life	"private" arrange- ments can REPRODUCE DEPENDENCY and POWER	privacy protects autonomy but CANNOT IMMUNISE harm or domination
What protects minorities and dissent?	EQUAL RIGHTS, viewpoint freedom, state neutrality	SHARED GOODS sustain belonging and responsibility	common good is legitimate ONLY IF dissenters retain EQUAL CIVIC STANDING

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v

OBJECTION -> the HARM-TO-SELF / HARM-TO-OTHERS boundary is POROUS, because dependency and social costs create SPILLOVERS

REPLY -> harm is a BURDEN-OF-PROOF TEST, not a claim that conduct is ever SOCIALLY ISOLATED

BOUNDARY -> "the personal is political" is used here ONLY to expose PRIVATE DOMINATION;
gender theory itself belongs to the GENDER DISCRIMINATION owner

ASCII MASTER FLOW – PANEL 16/25: The idealist, welfare and communitarian models

THREE MODELS THAT DENY THE PRE-SOCIAL CHOOSER

IDEALIST the state is an ETHICAL INSTITUTION through which FREEDOM IS REALISED;
freedom MATURES within FAMILY - CIVIL SOCIETY - STATE; rights are NOT
pre-social atoms but CONDITIONS for SELF-REALISATION

WELFARE FORMAL RIGHTS ARE HOLLOW where poverty, illness, ignorance or dependency
makes CHOICE UNUSABLE -> a SOCIAL MINIMUM and FAIR OPPORTUNITY
LIMIT: paternalism, administrative domination, dependency

COMMUNITARIAN .. persons are EMBEDDED in histories, practices and relationships; COMMON
GOODS cannot be derived from ISOLATED CHOICE alone
LIMIT: tradition can conceal HIERARCHY; "community" may SILENCE
INTERNAL MINORITIES

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v

HEGEL AND GREEN MUST NOT BE FLATTENED

HEGEL -> the RATIONAL state belongs to ETHICAL LIFE; freedom becomes CONCRETE through
recognised rights and participation in rational institutions.

X NOT the claim that EVERY EXISTING government is divine, infallible or
entitled to TOTAL OBEDIENCE

GREEN -> the state is a MEANS to the COMMON GOOD; its work is to REMOVE REMEDIABLE
HINDRANCES to self-realisation while LEAVING MORAL AGENCY WITH CITIZENS;
political obligation is CONDITIONAL, not blind

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v

OBJECTION -> once the state DEFINES the rational or higher self, COERCION can be presented
as LIBERATION

REPLY -> keep enabling action RIGHTS-BOUND, DECENTRALISED where possible, and OPEN TO
PUBLIC CHALLENGE

RESIDUAL -> the criterion separating ENABLING from IMPOSING remains contested, so the
danger is reduced rather than removed

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v

THE TWO-WAY EXCHANGE WITH LIBERALISM -- BOTH SIDES SCORE

LIBERAL REPLY -> liberalism need NOT equal ATOMISM: political neutrality can protect FAIR
COOPERATION among SOCIALLY EMBEDDED persons who reasonably disagree about the good

COMMUNITARIAN REJOINDER -> neutrality itself PRIVILEGES an AUTONOMOUS CHOOSER and depends
on institutions, habits and solidarities that CANNOT BE GENERATED BY RIGHTS ALONE

ASCII MASTER FLOW – PANEL 17/25: The radical challenges -- anarchist and Marxist

TWO CHALLENGES, DIFFERENT TARGETS -- DO NOT MERGE THEM

ANARCHIST -> targets the LEGITIMACY OF COERCION AS SUCH

MARXIST ---> targets the CLASS FORM of the state and the FORMALITY of its rights

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THE ANARCHIST CHALLENGE

CLAIM -> if persons are capable of VOLUNTARY COOPERATION, MUTUAL AID and LOCAL

SELF-ORGANISATION, the state may be INSTITUTIONALISED DOMINATION

EFFECT -> it forces political theory to JUSTIFY COERCION rather than ASSUME it

PRESUPPOSITION -> authority requires a STRONGER DEFENCE than habit or fear

DISTINCTION -> PHILOSOPHICAL anarchism need NOT endorse CHAOS: it DOUBTS political obligation or advocates DECENTRALISED ASSOCIATION

OBJECTION -> without the state, RIGHTS SECURITY COLLAPSES; someone must adjudicate, enforce and defend

REPLY -> voluntary coordination produces much social order without command

RESIDUAL -> this is the STRONGEST PRACTICAL objection and it is NOT fully answered: large-scale justice appears to require ENFORCEABLE institutions

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v

THE MARXIST CHALLENGE

CLAIM -> the state in class society is STRUCTURALLY TIED TO DOMINATION, and many rights are FORMALLY EQUAL but MATERIALLY UNEQUAL in effect

ARGUMENT -> liberal rights can protect PRIVATE PROPERTY and FORMAL EQUALITY while leaving EXPLOITATION INTACT; the state claims UNIVERSALITY but often functions through CLASS POWER

PRESUPPOSITION -> ECONOMIC STRUCTURE shapes LEGAL and POLITICAL forms

DISTINCTION -> X it does NOT simply deny ALL rights; it criticises BOURGEOIS-RIGHTS frameworks as FORMAL, ABSTRACT and compatible with DEEP INEQUALITY

OBJECTION -> Marxist suspicion of liberal rights can UNDERPLAY CIVIL LIBERTIES

BALANCED LINE -> rights are INDISPENSABLE, but their MEANINGFUL EXERCISE depends on MATERIAL CONDITIONS

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WHAT EACH CONTRIBUTES TO THIS CLAUSE

ANARCHIST -> shifts the BURDEN OF PROOF onto the state, which is why the political-obligation grid of Panel 18 exists at all

MARXIST ---> shows that rights need MATERIAL CONDITIONS, which bridges to the WELFARE model and to the 2019 reciprocal-accountability answer

FENCE -> as FULL IDEOLOGIES both belong to POLITICAL IDEOLOGIES; here they are RELATION-MODELS only

ASCII MASTER FLOW – PANEL 18/25: Political obligation -- what it is, and the four tests

DEFINITION -> a MORAL duty to obey the law of ONE'S OWN state BECAUSE IT IS THE LAW, as distinct from prudential FEAR of sanction or independent AGREEMENT with a law's content

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THREE THINGS IT IS NOT

- NOT FEAR a gunman also produces obedience: that is BEING OBLIGED, not HAVING AN OBLIGATION
- NOT AGREEMENT WITH if I obey only laws I independently endorse, the LAW ADDS THE CONTENT NOTHING to my reasons
- NOT LEGAL VALIDITY validity is a JURISPRUDENTIAL question; MORAL BINDINGNESS is a SEPARATE question

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FOUR TESTS -- APPLY THE SAME GRID TO EVERY CANDIDATE GROUND

1. GENERALITY does it bind ALL citizens, or only some?
2. PARTICULARITY does it bind me to MY OWN state rather than to ANY well-ordered state?
3. CONTENT-INDEPENDENCE does it give a reason to obey the law BECAUSE IT IS LAW, not because the act is independently right?
4. DEFEASIBILITY what DEFEATS it, and what FOLLOWS when it is defeated?

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FAIR PLAY RECONSTRUCTED -- THE FAMILY EXAMINERS MOST OFTEN REWARD

- 1 political society is a COOPERATIVE SCHEME producing security, adjudication, infrastructure and public health
 - 2 those benefits exist only because MOST PARTICIPANTS RESTRAIN THEMSELVES and BEAR BURDENS
 - 3 I have ACCEPTED and ENJOYED those benefits
 - 4 to take the benefit while refusing the burden is to FREE-RIDE on others' restraint
 - 5 free-riding is UNFAIR
 - 6 therefore I OWE COMPLIANCE as my fair share
- PRESUPPOSITION -> benefits ACCEPTED not merely RECEIVED; the scheme itself REASONABLY JUST

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WHERE FAIR PLAY COLLAPSES, AND THE REPAIR

- OBJECTION -> premises 3 and 6 DO NOT CONNECT: public order is a NON-EXCLUDABLE good that I cannot decline, and an unsolicited benefit I could not refuse generates NO DEBT -- otherwise every generous neighbour could bind me at will
- REPLY -> restrict the argument to schemes whose benefits are KNOWINGLY and WILLINGLY ACCEPTED and which distribute burdens FAIRLY
- RESIDUAL -> the restriction SHRINKS the argument's reach to precisely the citizens who LEAST NEED TO BE BOUND

ASCII MASTER FLOW – PANEL 19/25: The six families and the attribution control

FAMILY	CORE CLAIM	ANCHOR	STRONGEST OBJECTION
CONSENT / CONTRACT	obligation from a VOLUNTARY undertaking, express or tacit	Locke; Hobbes; Rousseau	almost nobody EXPRESSLY consented; TACIT consent from residence or use of roads is not voluntary
FAIR PLAY / FAIRNESS	those who ACCEPT the benefits of a cooperative scheme OWE a fair share of its burdens	Hart; Rawls	public order is NON-EXCLUDABLE; an unsolicited benefit creates NO DEBT
NATURAL DUTY OF JUSTICE	we owe support to JUST institutions that apply to us, consented or not	Rawls	fails PARTICULARITY -- binds me to ANY just state, not to MY own
ASSOCIATIVE / MEMBERSHIP	obligations flow from CONSTITUTIVE identities and role-relations	Dworkin's associative obligations; communitarians	obligation would follow from MERE MEMBERSHIP, however unjust the association
GRATITUDE	the state supplies security, order and the conditions of a decent life	classical and Indian duty-based frameworks	generates SOME reciprocity, NOT general obedience; and an OPPRESSOR can claim it
ANTI-OBLIGATION / PHILOSOPHICAL ANARCHISM	NO general obligation has been demonstrated; assess each law on its merits	Wolff's autonomy-based anarchism; A. J. Simmons	leaves no account of why a LEGITIMATE state's authority differs from a PRIVATE AGENCY's demands

ATTRIBUTION DISCIPLINE -- NEVER SWAP THESE TWO

SIMMONS = the canonical modern SCEPTIC: each standard ground FAILS TO BIND ALL AND ONLY the members of a PARTICULAR state, so a GENERAL obligation is not established -- while he CONCEDES that many laws should be obeyed for INDEPENDENT moral reasons

RAZ = the leading AUTHORITY-BASED alternative, the SERVICE CONCEPTION: an authority is legitimate when its directives help subjects CONFORM BETTER to reasons that ALREADY APPLY to them; those directives then function as PRE-EMPTIVE (exclusionary) reasons that REPLACE rather than merely OUTWEIGH the subject's own calculation

LIMIT ON RAZ -> the justification is INSTRUMENTAL, so authority is BOUNDED by that function and does not extend beyond the domains where it improves conformity

X DO NOT attribute the SERVICE CONCEPTION to SIMMONS, or PHILOSOPHICAL ANARCHISM to RAZ

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THE SCEPTICAL CONCLUSION, STATED NARROWLY

it denies a GENERAL, CONTENT-INDEPENDENT duty -- NOT the claim that most PARTICULAR laws are independently binding through moral reasons against HARM, FRAUD and UNFAIRNESS.

ASCII MASTER FLOW – PANEL 20/25: The disobedience ladder -- four rungs on five criteria

FOUR GRADED FORMS -- NOT FOUR SYNONYMS

FORM	AIM	PUBLICITY	LEGALITY	SCOPE	SYSTEM
CONSCIENTIOUS OBJECTION	avoid PERSONAL COMPLICITY	may be PRIVATE	seeks EXEMPTION; typically ACCEPTS the penalty	the actor's own act	ACCEPTS legitimacy
CIVIL DISOBEDIENCE	PERSUADE the political majority to change a law	ESSENTIALLY PUBLIC, to the community's sense of justice	deliberate BREACH with ACCEPTANCE of legal CONSEQUENCES	a specific law or policy	ACCEPTS legitimacy; appeals to its OWN principles
RESISTANCE	OBSTRUCT or NULLIFY a grave injustice	may be COVERT	breaks law; may NOT accept the penalty	a regime's particular acts	DENIES the legitimacy OF THOSE ACTS
REVOLUTION	REPLACE the constitutional order	organised, often armed	REJECTS the legal order wholesale	the WHOLE system	DENIES the system's legitimacy

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THE TWO DEFINING FEATURES OF CIVIL DISOBEDIENCE

- (i) PUBLICITY and APPEAL TO SHARED PRINCIPLES
- (ii) ACCEPTANCE OF THE LEGAL PENALTY -- which is what shows the actor CONTESTS ONE LAW rather than REPUDIATING LAW AS SUCH

NON-VIOLENCE is the standard THIRD condition; on the GANDHIAN account it is CONSTITUTIVE, not merely tactical, because MEANS AND ENDS ARE INSEPARABLE

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JUSTIFICATION, RECONSTRUCTED

- 1 a general obligation to obey, if any, is DEFEASIBLE and not absolute
 - 2 a law may be so unjust that compliance makes the citizen COMPLICIT in wrong
 - 3 legal channels of redress may be EXHAUSTED, BLOCKED or UNAVAILABLE TO THE AFFECTED GROUP
 - 4 open, non-violent breach WITH acceptance of penalty COMMUNICATES the wrong WITHOUT attacking the legal order as such
 - 5 therefore civil disobedience is PERMISSIBLE, and in some conditions OBLIGATORY, within a SUBSTANTIALLY JUST constitutional order
- PRESUPPOSITION -> the order is substantially just and its majority CAN BE PERSUADED.
Where neither holds, the argument shifts to RESISTANCE or REVOLUTION -- and the BURDEN OF JUSTIFICATION RISES SHARPLY.

OBJECTION -> if obligation is defeasible, every citizen becomes a PRIVATE JUDGE of the law

REPLY -> the LADDER IS the answer: publicity, non-violence, exhaustion of remedies and acceptance of penalty are SEVERE FILTERS that preserve law's authority

ASCII MASTER FLOW – PANEL 21/25: Three dated illustrations, the Gandhi-Ambedkar tension and the Indian application

THREE DATED ILLUSTRATIONS -- KEEP THEM DISTINCT

THOREAU 1849 ... Civil Disobedience (first published as "Resistance to Civil Government"): the individual conscience is PRIOR to majority will; a citizen must not lend himself to a wrong through OBEDIENCE or TAXATION.

MODEL = INDIVIDUAL CONSCIENTIOUS REFUSAL, NOT an organised mass campaign.

X do NOT present him as Gandhi's blueprint.

GANDHI 1930 Salt Satyagraha: march begun MARCH 1930; salt law broken 6 APRIL 1930.

Publicly announced, non-violent, aimed at a SPECIFIC unjust law, WITH ACCEPTANCE OF ARREST. Satyagraha is OPEN TO SELF-SUFFERING, not the INFLICTION of suffering.

It ILLUSTRATES THE CONCEPT'S STRUCTURE -- not that disobedience is always justified.

AMBEDKAR 25 NOVEMBER 1949 ... Constituent Assembly concluding address: once CONSTITUTIONAL METHODS of achieving social and economic objectives are available, unconstitutional methods -- satyagraha, non-cooperation, civil disobedience -- are UNJUSTIFIED, and he described them as the "GRAMMAR OF ANARCHY".

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THE GANDHI-AMBEDKAR TENSION, STATED AS PHILOSOPHY RATHER THAN HISTORY

the disagreement is about the AVAILABILITY CONDITION in premise 3 of the justification:

GANDHI presupposes a regime in which the affected people have NO constitutional voice
AMBEDKAR presupposes a regime in which they DO

-> BOTH can be right RELATIVE TO THEIR PREMISE; the live question becomes whether constitutional channels are genuinely open TO THE GROUP IN QUESTION -- an EMPIRICAL and CONTESTABLE claim, not a settled one

-> AMBEDKAR'S DEEPER AND STRONGER WORRY: extra-constitutional agitation in a society STILL STRATIFIED BY CASTE can be CAPTURED by dominant groups, so the method that LIBERATES one group may ENTRENCH another

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INDIAN APPLICATION, WITH THE LEGAL-STATUS CAUTION

ARTICLES 19(1)(a) and 19(1)(b) -> freedom of speech and expression, and the right to assemble PEACEABLY and WITHOUT ARMS, SUBJECT TO reasonable restrictions under Articles 19(2) and 19(3). These protect PROTEST -- NOT law-breaking.

ARTICLE 51A -> Fundamental Duties, inserted by the Constitution (Forty-second Amendment) Act, 1976, including the duty to abide by the Constitution and its institutions.

NON-JUSTICIABLE: not directly enforceable by a court.

CONTROLLING CAUTION -> no provision, statute or judgment can settle the PHILOSOPHICAL question of political obligation. LEGAL PERMISSION IS NOT MORAL JUSTIFICATION, and LEGAL PROHIBITION IS NOT MORAL REFUTATION.

X NEVER claim that any Indian statute or judgment "RECOGNISES A RIGHT TO CIVIL DISOBEDIENCE" -- by definition it is a BREACH of law whose actor ACCEPTS the penalty.

ASCII MASTER FLOW – PANEL 22/25: The social contract -- development and the adequacy test

WHAT EACH THINKER "CHANGES" (the 2024 stem says ORIGIN "AND DEVELOPMENT")

THINKER	STATE OF NATURE	WHY CONTRACT?	AUTHORITY	RIGHTS OUTCOME
HOBBS	insecurity, fear, conflict	security and peace	STRONG SOVEREIGN	broad TRANSFER for self-preservation
LOCKE	relative freedom with inconveniences	impartial protection of rights	LIMITED GOVERNMENT	NATURAL RIGHTS RETAINED
ROUSSEAU	freedom CORRUPTED by inequality	collective self-rule	GENERAL WILL	CIVIL FREEDOM and MORAL AUTONOMY

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THE MOVEMENT, STATED AS CHANGES -- NOT AS THREE BIOGRAPHIES

HOBBS -> LOCKE : adds TRUST, LIMITS and a RIGHT OF RESISTANCE on forfeiture

LOCKE -> ROUSSEAU: RELOCATES SOVEREIGNTY in the GENERAL WILL -> SELF-LEGISLATION

COMMON AIM -> obligation must arise FROM THE STANDPOINT OF INDIVIDUALS, not from DIVINE RIGHT or MERE CONQUEST

PRESUPPOSITION -> a JUSTIFICATORY STORY accessible to RATIONAL PERSONS

FICTION OBJECTION -> no ACTUAL historical contract occurred.

REPLY -> the value is NORMATIVE, not HISTORICAL: what terms of rule could FREE AND EQUAL PERSONS REASONABLY ACCEPT?

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THE 2021 ADEQUACY TEST -- FIX THE BENCHMARK FIRST

BENCHMARK -> human rights aspire to UNIVERSALITY BEYOND CITIZENSHIP AND CONSENT

WHAT IT DELIVERS

WHAT IT STRUGGLES WITH

rights AGAINST arbitrary rule
(Locke's trust and resistance)

persons OUTSIDE the contract (non-citizens, strangers)

EQUALITY and SELF-LEGISLATION
(Rousseau's general will)

FUTURE GENERATIONS

a justificatory story accessible
to RATIONAL persons

those LACKING BARGAINING POWER (children, the severely disabled)

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OBJECTION -> contract ALREADY treats persons as FREE AND EQUAL, so it suffices

REPLY -> the PARTIES are specified as those CAPABLE OF CONTRACTING, and the distinctive work of human rights is to bind us towards those who CANNOT

VERDICT -> POWERFUL BUT INCOMPLETE: contract explains POLITICAL LEGITIMACY; human rights ALSO require a theory of DIGNITY, HUMANITY or PERSONHOOD

RESIDUAL -> abstraction from UNEQUAL STARTING POSITIONS is not fully answered by any version of the theory

ASCII MASTER FLOW – PANEL 23/25: Plato against Aristotle -- statism and individualism

THE TEST OF A MIDDLE COURSE -> does an INTERMEDIATE SPHERE survive BETWEEN person and

political whole -- household, property, association, plural constitutional roles?

NEITHER thinker is an ATOMISTIC INDIVIDUALIST, so the comparison runs on THAT axis.

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AXIS	PLATO	ARISTOTLE
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POLITICAL WHOLE	the Republic makes justice FUNCTIONAL HARMONY under PHILOSOPHER-RULE	the polis is NATURAL and exists for the GOOD LIFE
UNITY / PLURALITY	the GUARDIAN class gives up PRIVATE PROPERTY and PRIVATE FAMILY to prevent FACTION	criticises EXCESSIVE UNITY: a polis is a PLURALITY, not one household or one person
HOUSEHOLD / PROPERTY	guardian arrangements SUBORDINATE the private domain to political unity	household and PRIVATE PROPERTY REMAIN, though USE should serve common purposes
INDIVIDUAL GOOD	the person's good is fixed by PROPER FUNCTION in the ordered city	flourishing REQUIRES the polis, but citizenship is ACTIVITY within a DIFFERENTIATED CONSTITUTION
MAIN LIMIT	hierarchy and philosopher- rule risk SEVERE STATISM	SLAVERY, GENDER EXCLUSION and RESTRICTED CITIZENSHIP block modern endorsement

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THE COMPARATIVE JUDGMENT -- HALF ONE

Aristotle preserves MORE SOCIAL PLURALITY, better protects the INTERMEDIATE SPHERE, and
RELATES rather than ABSORBS person and polis. That is exactly what STEERING A MIDDLE
COURSE requires, so the stem's comparison is SOUND.

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THE QUALIFICATION -- HALF TWO, AND IT IS COMPULSORY

BOTH remain PERFECTIONISTS: neither treats the state as NEUTRAL among conceptions of the
good. And Aristotle's polity rests on SLAVERY, the EXCLUSION OF WOMEN and RESTRICTED
CITIZENSHIP, so his intermediate sphere is available only to a RESTRICTED CITIZEN BODY.

OBJECTION -> if he keeps the natural polis and the common good, he is only a Milder Statist

REPLY -> the middle course is measured by whether an INTERMEDIATE SPHERE SURVIVES, and his
criticism of EXCESSIVE UNITY is aimed at exactly the pole he is accused of occupying

RESIDUAL -> a modern egalitarian gets the STRUCTURE without the MEMBERSHIP -- UNCLOSED

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VERDICT LINE -> "ARISTOTLE'S SUCCESS IS COMPARATIVE, NOT LIBERAL."

Agree with the stem AND qualify immediately; an unqualified agreement MISDESCRIBES BOTH
THINKERS.

ASCII MASTER FLOW – PANEL 24/25: Trap list -- the final pre-submission check

X Bentham rejected ALL rights	he rejects NATURAL rights only; his positive test is CLAIMANT + DUTY-BEARER + REMEDY
X Hohfeld reduced to one formula	FOUR incidents; only the CLAIM-RIGHT is strictly correlative to a duty
X correlativity as identity everywhere	FALSE for LIBERTIES; strongest as a NORMATIVE-JURIDICAL thesis
X Gandhi as anti-rights	he reorders the MORAL SOURCE of rights through duty; he does not deny them
X accountability = elections	political, legal AND moral arenas; THREE dimensions, not one mechanism
X Indian tradition "antagonistic"	a DUTY-CENTRED IDIOM that both ENRICHES and COMPLICATES rights discourse
X limitation = destruction	principled limits are the CONDITION of coexistence; the abuse is ARBITRARY restriction
X Hobbes = Locke = Rousseau	freedom, authority and rights differ SHARPLY: transfer, trust, general will
X organic theory as literal biology ...	rival LOGICAL METAPHORS about EXPLANATORY PRIORITY
X liberalism = atomism	welfare liberalism and neutrality recognise SOCIAL FORMATION, public goods, fair opportunity
X Hegel defends EVERY actual state	the claim concerns RATIONAL ETHICAL INSTITUTIONS, not incumbent government
X positive freedom = paternalism	enabling provision stays RIGHTS-BOUND; the harm principle disciplines coercion for one's own good
X the private sphere is non-political .	privacy protects autonomy but CANNOT IMMUNISE harm, dependence or domination
X Aristotle as a modern individualist .	a COMPARATIVE middle only; both are PERFECTIONISTS and his EXCLUSIONS stand
X the four rungs merged	they differ on AIM, PUBLICITY, LEGALITY, SCOPE and ATTITUDE TO THE SYSTEM
X Simmons and Raz swapped	SIMMONS the SCEPTIC; RAZ the SERVICE CONCEPTION
X Article 51A mis-dated or used as	FORTY-SECOND AMENDMENT, 1976; NON-JUSTICIABLE; moral proof it settles NOTHING moral
X Thoreau as Gandhi's blueprint	individual WITHDRAWAL against an organised PENALTY-ACCEPTING campaign
X "Indian law recognises civil	by definition it is a BREACH of law whose actor disobeys" ACCEPTS the penalty
X importing another owner's material ..	Austin/Kelsen/Hart -> Sovereignty; ideologies -> Political Ideologies; forms of democracy -> Forms of Government; the ideals triad -> Social and Political Ideals

ASCII MASTER FLOW – PANEL 25/25: PYQ routes and the eight-move answer spine

YEAR	PART	MC	DEMAND	ROUTE
2018	Q4(a)	20	dignity as a COMMON HUMAN ASPIRATION	aspiration vs articulation; the three-column grid; minimum core
2019	Q2(a)	20	do rights make citizens accountable TO the State (Indian context)	three dimensions; three arenas; Dworkin; RECIPROCAL verdict
2020	Q2(c)	15	is Indian tradition ANTAGONISTIC to individual rights	fix the test; dharma idiom; Gandhi bridge; Ambedkar concession
2021	Q4(c)	15	is SOCIAL CONTRACT adequate for human rights	name the benchmark; Locke and Rousseau; three excluded categories
2022	Q4(b)	15	do UNCONDITIONAL rights NECESSARILY lead to anarchy	define both words; collision; four boundary principles; accountability
2023	Q2(b)	15	DUTY and ACCOUNTABILITY prior to rights	criterion first; priority grid; accountability as the safeguard
2024	Q1(b)	10	ORIGIN and DEVELOPMENT of social contract theory	transfer -> trust -> general will, written as CHANGES
2024	Q3(a)	20	ARISTOTLE more successful than PLATO between statism and individualism	the intermediate sphere; five axes; perfectionism and exclusions
2025	Q4(c)	15	duties = obligation, rights = entitlement, NO NECESSARY connection	concede premise; refuse inference; Hohfeldian split

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THE EIGHT-MOVE ANSWER SPINE

- 1 NAME THE DIRECTION -- claim AGAINST / obligation THROUGH / answerability OF
- 2 DEFINE with exact vocabulary -- Hohfeld's incidents, three dimensions, six families
- 3 STRONGEST CASE for the proposition, set out as PREMISES
- 4 STRONGEST RIVAL in its BEST form -- liberal, idealist, Gandhian, Marxist, anarchist
- 5 ONE OR TWO OBJECTION -> REPLY -> RESIDUAL chains
- 6 DEPLOY ONE STRUCTURE -- the ladder, obligation grid, three-dimension or priority grid
- 7 ONE DATED INDIAN ILLUSTRATION, classified accurately, WITH the legal-status caution
- 8 GRADED VERDICT conceding what the losing side secures

CLOSING LINES TO ADAPT, NEVER REPRODUCE MECHANICALLY

- MODAL "claim-rights are necessarily correlative to duties; liberties are not"
- CONDITIONAL ... "the obligation holds where institutions are substantially just and channels genuinely open, and lapses where they are not"
- NARROWED "the sceptic defeats the GENERAL, CONTENT-INDEPENDENT duty, not the claim that most particular laws are independently binding"
- LADDER "LOCATE THE CASE ON THE LADDER; do not approve or condemn disobedience as such"
- RECONCILIATION "a mature polity CONSTITUTIONALISES rights, CULTIVATES duties and INSTITUTIONALISES accountability"
- DIGNITY- "the individual is neither an ATOM OUTSIDE SOCIETY nor an EXPENDABLE PART OF THE STATE; specify a justified relation between DIGNITY and AUTHORITY"